Once POTO was introduced, Rajbir Singh, an assistant commissioner of police in the special cell, and an ‘encounter specialist’, was made the investigating officer (IO) of the case. In his article ‘Victims of December 13’ (*Guardian* Weekly, 5 July 2005), Basharat Peer writes, ‘Singh was already under a cloud when the home ministry, then under L.K. Advani, appointed him to head the investigation into the attack on the Indian Parliament.’[12]

The appointment was technically correct, yet one wonders if it was proper to appoint such a junior officer as IO in this immensely complex and sensitive case. The modus operandi of securing the confession throws light on the issue. With ACP Rajbir Singh as IO, the confession was obtained by DCP Ashok Chand in the special cell itself. It is not surprising that legal assistance was not offered, that no relatives were informed and that Afzal was taken back into police custody on some pretext. Things stayed within the special cell, no chances were taken. Mohammad Afzal was a pawn in the designs of the State.

Trial by Design

The introduction of POTO also allowed the trial to be held in the designated special court for POTA. The Indian law ministry appointed Shiv Narayan Dhingra as a special judge. Basharat Peer’s comment on the appointment is telling: ‘By the 1990s, he [Dhingra] was handling cases of terrorism and had earned the name “the hanging judge”[13].’ The trial began in June 2002 in an atmosphere in which the trauma of an imminent war and the smoke from the pogroms in Gujarat hung over the nation, the country was baying for the blood of the accused after a massive propaganda by the police and the media, and POTA had become the law of the land.

Very few lawyers were willing to oblige: most ‘did not want to be associated with the Parliament attack case’.[14] Moreover, the special judge ordered a ‘fast track’ trial in this immensely complex case. The trial lasted just over five months, in which time the prosecution presented eighty witnesses. It is hard to see how a fair trial could be accomplished under these conditions.

The defence of Mohammad Afzal, the key figure in the State-sponsored story of conspiracy, suffered the most. With great difficulty, Geelani’s defence managed to produce some witnesses; Afzal had none. He had no legal defence in the period between his arrest on 15 December 2001 and the filing of the